

Reserved On : 19.06.2024 vs Uttam Chand & Anr on 8 July, 2024

Author: Virender Singh

Bench: Virender Singh

2024:HHC:

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

RSA No. : 468

Reserved on : 19.
Decided on : 08.

Tara ...

Versus

Uttam Chand & Anr. ...

Coram
The Hon'ble Mr. Justice Virender Singh, Judge.

Whether approved for reporting?1 Yes

For the appellant : Mr. N.K. Thakur, Senior Advocate,
with Mr. Divya Raj Singh, Advocate.

For the respondents : Mr. G.R. Palsra, Advocate.

Virender Singh, Judge

Appellant-Tara, has preferred

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Regular Second Appeal, against the judgment and decree
dated 01.06.2012, passed by the Court of learned District

Judge, Kullu, Himachal Pradesh (hereinafter referred to as
the 'learned First Appellate Court'), in Appeal No.74/11,
titled as 'Tara Versus Uttam Chand & Another'.

2. Vide judgment and decree dated 01.06.2012,
the learned First Appellate Court has dismissed the appeal,

1 Whether Reporters of local papers may be allowed to see the judgment? Yes.

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preferred by appellant-Tara, against the judgment and
decree dated 29.11.2011, passed by the Court of learned

Civil Judge (Sr. Div.), Kullu, Himachal Pradesh (hereinafter
referred to as the 'learned trial Court') in Civil Suit

No.209 of 2008, titled as 'Tara Versus Uttam Chand & Another'.

3. Vide judgment and decree dated 29.11.2011, the learned trial Court has dismissed the suit, filed by the appellant.

4. For the sake of convenience, the parties to the present lis are, hereinafter referred to, in the same manner, as were, referred to, by the learned trial Court.

5. Brief facts, necessary for the adjudication of the present appeal, as borne out, from the record, are as

under:-

5.1 The plaintiff has filed the suit for decree of

declaration to the effect that Smt. Lesari, the mother of the plaintiff & defendant No.2, and maternal grandmother of defendant No.1, died intestate on 05.10.2007, leaving behind the plaintiff and defendant No.2, as her legal heirs and as such, she has claimed the inheritance of the estate, left by Smt. Lesari, in equal share.

5.2 In addition to this, plaintiff has also sought the declaration of Mutation No.10 dated 15.12.2008 of Up

Muhal Tila Shani Phati Nathan Kothi Nagaar Tehsil and District Kullu, which has been sanctioned, on the basis of

the Will dated 27.12.2004, as illegal, inoperative, null and void and not binding upon the rights of the plaintiff.

5.3 The Will dated 27.12.2004 is also sought to be declared as forged, fictitious and surrounded with suspicious circumstances. The relief of injunction has also been sought against defendant No.1 from causing any sort of unlawful interference over the peaceful joint ownership and possession of the plaintiff over the suit land. The plaintiff has also filed the suit on the ground that the predecessor-in-interest of the plaintiff and defendant No.2

was recorded as owner in possession of the following land:-

"I) Land measuring 0-50-01 Hec to the extent of

24/48 shares measuring 0-31-59 Hec out of total land contained in Khasra No.49, 78, 114, 124, 139, 141, 149, 117, 118 and 115 Kita 10 Khata/ Khatouni no 24/31 to 34 situated at up muhal Tilla Shani Phati Nathan Kothi Nagar Tehsil and Distt. Kullu H.P., incorporated in Misal Haqiat for the year 2003-2004.

II) Land measuring 0-17-81 Hec to the extent 88/176 shares measuring 0-08-90 Hec out of total land contained in Khasra No. 112 Khata/Khatouni No. 5/8 situated at up muhal Tilla Shani Phati Nathan Kothi Nagar Tehsil and

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Distt. Kullu H.P., incorporated in Misal Haqiat for the year 2001-2002.

III) Land measuring 0-10-19 Hec to the extent of

4/8 shares measuring 0-14-02 Hec out of total

land contained in Khasra No. 178 Khata/Khatouni No.8/11 situated at up muhal Tilla Shani Phati Nathan Kothi Nagar Tehsil and Distt. Kullu H.P., incorporated in Misal Haqiat for

the year 2001-2002.

IV) Land measuring 0-04-21 Hec to the extent of 4/8 shares measuring 0-07-01 Hec out of total land contained in Khasra No. 196 and 216

Khata/Khatouni No. 19/27 situated at up muhal Tilla Shani Phati Nathan Kothi Nagar Tehsil and Distt. Kullu H.P., incorporated in Misal Haqiat for the year 2003-2004."

5.4 It is the further case of the plaintiff that Smt.

Lesari was married to Sh. Chuni of Village Tilla Shani and out of this wedlock, defendant No.2 and Uttami were born.

The said Uttami had expired, during the lifetime of her

father and the estate of the Sh. Chuni was inherited by

Smt. Lesari. Thereafter, Smt. Lesari settled with one Sh.

Sharnu of Village Bhullang and out of the said wedlock,

she blessed with daughter namely Tara (plaintiff).

5.5 It is the further case of the plaintiff that Smt.

Lesari died on 05.10.2007, intestate leaving behind the

plaintiff and defendant No.2, as her legal heirs, and after

the death of Smt. Lesari, her estate has been inherited by

the plaintiff and defendant No.2, in equal share, and they are the joint owners of the suit land.

5.6 It is the further case of the plaintiff that Smt. Lesari was residing with plaintiff and was being looked

after by the plaintiff, during her lifetime, and she was happy with the services, rendered by the plaintiff. Even,

last rites of Smt. Lesari were performed by the plaintiff. The mother of the plaintiff is stated to be sick and was unable to move, due to her old-age, prior to her death, which had taken place on 05.10.2007.

5.7 Asserting the fact that defendant No.1 is a very clever, mischievous and influential person and when, the plaintiff was busy in performing the last rites of Smt.

Lesari, then, defendant No.1, in connivance with the

revenue officials, got Mutation No.10 sanctioned, regarding the suit land, on the basis of the forged and fictitious Will

dated 27.12.2004. The objections were also raised by the plaintiff, at the time of sanctioning the mutation, but, those were not considered.

5.8 According to the plaintiff, Smt. Lesari died intestate and the Will, allegedly executed by her, is a forged and fictitious document.

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6. On the basis of above facts, the plaintiff has sought the relief, as claimed in the plaint.

7. When put to notice, the suit has been contested/resisted by the defendants, by filing the written statement.

7.1 In the written statement, defendants have taken

the preliminary objections, with regard to the fact that the

plaintiff has no cause of action or locus standi to file the suit, as, she is not the daughter of Smt. Lesari, nor, she had rendered any kind of services towards Smt. Lesari, during her lifetime; that the suit is not maintainable; that the plaintiff has concealed the true and material facts from the Court and that the suit is liable to be dismissed with special costs, under Section 35-A of CPC.

7.2 On merits, it has been admitted that the suit land was earlier owned and possessed by Smt. Lesari, who

was married to Sh. Chuni of Village Tilla Shani and out of this wedlock, defendant No.2 and Uttami were born and after the demise of Uttami, the estate of Sh. Chuni was inherited by Smt. Lesari and defendant No.2. Date of death of Smt. Lesari has not been disputed, but, it has been denied that the plaintiff, being the legal heir of Smt. Lesari

and after her death, had inherited the property, along with defendant No.2.

7.3 It is the case of the defendants that Smt. Lesari was having only one daughter, namely Ambari Devi, who is

defendant No.2, out of her husband Chuni Lal. The plaintiff has no concern with the suit land, as well as, with

Smt. Lesari. Smt. Lesari had executed the registered Will dated 26.03.2003, in favour of her two grandsons i.e. defendant No.1 and Sh. Dharam Chand. Thereafter, the

Will dated 27.12.2004 was executed by Smt. Lesari, in favour of defendant No.1, on account of love and affection, as well as, the services, rendered by him.

8. Supporting the Will, a prayer has been made to dismiss the suit.

9. Plaintiff has filed the replication, to the written statement, filed by the defendants, denying the preliminary

objections, as well as, the contents of the written statement, by virtue of which, the suit has been contested, by re-asserting the contents of the plaint.

10. From the pleadings of the parties, following issues were framed, by the learned trial Court, vide order dated 04.11.2009:-

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1. Whether the plaintiff and the defendant No.2 are the only Legal heirs of deceased Smt. Lesari Devi after her death and she died intestate on 05.10.2007? OPP

2. Whether the plaintiff alongwith defendant NO.2 being LRs of deceased Smt. Lesari Devi are entitled to inherit her property as per her share on the basis of inheritance? OPP

3. Whether the plaintiff is entitled for the relief of declaration to the effect of joint ownership and possession of the suit land? OPP.

4. Whether the alleged Will dated 27.12.2004 is

forged, fictitious and surrounded by suspicious circumstances? OPP.

5. Whether the plaintiff is entitled for relief of decree of permanent prohibitory injunction

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against the defendant as prayed for? OPP.

6. Whether the plaintiff has got no cause of action to file the suit? OPD
7. Whether the plaintiff has no locus standi to file the present suit? OPD

8. Whether the suit of the plaintiff is not maintainable in the present form? OPD
9. Whether the plaintiff has suppressed the

material facts from the Court? OPD
10. Whether late Smt. Lesari Devi has executed

a legal and valid Will dated 27.12.2004 in favour of the defendant No.1 on account of love and affection? OPD

11. Whether the suit is liable to be dismissed with special costs, as prayed for? OPD
12. Relief."

11. After framing of the issues, parties to the lis were directed to adduce evidence.

12. After closure of the evidence and upon hearing learned counsel for the parties, the learned trial Court has

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dismissed the suit, vide judgment and decree dated 29.11.2011, mainly on the ground that the Will, on the

basis of which, the mutation has been sanctioned, is duly proved on record.

13. Feeling aggrieved from the said judgment and decree dated 29.11.2011, the plaintiff unsuccessfully

assailed the said judgment and decree, passed by the learned trial Court, before the learned First Appellate Court.

14. Dissatisfied with the judgment and decree, passed by the learned trial Court, which has been affirmed by the learned First Appellate Court, the present appeal has been preferred, before this Court, on the ground that

both the Courts below have gravely erred in dismissing the

suit, as, bare reading of the Will, Ex.DW2/A, would show that the same is a procured document and highlighting the

terminology, as mentioned in the Will, it has been pleaded in the grounds of appeal that the Will does not prove to be the consciously executed document, by Smt. Lesari.

15. The findings of the learned Courts below have been assailed on the ground that defendant No.1 managed to procure the impugned Will in connivance with the

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scribed witnesses and the registering authorities. The learned Courts below have also ignored the fact that

defendant No.1, who is the beneficiary of the Will, has played the active role in execution of the alleged Will and

one of the marginal witnesses is his near relative.

16. Findings of the learned Courts below have

further been assailed on the ground that it has been proved on record that the plaintiff is the daughter of Smt. Lesari and the alleged Will has not been proved on record, nor the suspicious circumstances could be dispelled, by

the defendants.

17. On the basis of above facts, appellant has prayed that the appeal may be allowed, by setting aside the

impugned judgment and decree, passed by the learned trial

Court and affirmed by the learned First Appellate Court, by decreeing the suit, as prayed for.

18. The present appeal has been admitted, by this Court, on 02.11.2012, on the following substantial question of law;-

"1. Whether both the learned Courts below were right in holding that Will Ex.DW2/A has been proved to be executed in accordance with the

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provisions of the Indian Succession Act?"

19. In order to decide the substantial question of

law, which has been framed in the present appeal, it would be just and appropriate, for this Court, to discuss the oral, as well as, documentary evidence, adduced by the parties, before the learned trial Court.

20. Firstly, plaintiff, in order to prove her case, has appeared herself, in the witness-box, as PW-1, and has filed the affidavit, Ex.PW1/A, which is based upon the assertions, as made, in the plaint.

20.1 In the cross-examination, this witness has deposed that Chuni Lal was the resident of Village Tilla Shani and had married with Lesari Devi. Out of the said marriage, Ambari and Uttami were born. Uttami had

expired and Ambari is still alive. However, she could not

disclose about the date of death of Chuni Lal. The estate of Chuni Lal was devolved upon Lesari Devi. Thereafter, Ambari had married with one Gyani. Out of the said

marriage, Gayatri Devi and Alam Chand were born.

20.2 This witness has denied that Ambari Devi had thereafter resided in Village Tilla Shani. She has further

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denied the suggestion that Lesari Devi had resided in Village Roomsu, but, voluntarily stated that she was

residing with this witness at Nashala. This witness has deposed that she has solemnized the marriage with one

Babu Ram. However, her marriage has been dissolved, by way of divorce, about 15-20 years ago. This witness has

not resided with Babu Ram, rather, Babu Ram had stayed at her house in Village Nashala for about 8-9 years. However, she has feigned ignorance about the fact that whether Babu Ram is alive or dead.

20.3 This witness has further denied that Lesari Devi had executed a Will in favour of her grandson. She has denied the execution of the Will dated 27.12.2004. She

has also denied the suggestion that Lesari Devi had resided

with Ambari and Uttami and Lesari Devi was looked after

by both of them. She has denied that the last rites of Lesari

Devi were performed by Ambari and Uttami, but, voluntarily stated that she had performed the last rites of Lesari Devi.

20.4 This witness has further denied that Lesari had not married with Sharnu. Sharnu had expired about 10 years ago. Sharnu was the owner of land measuring 2

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bigha. The estate of Sharnu was devolved upon his brother and this witness.

21. PW-2 Amar Chand, has stepped into the witness-box and deposed that Sharnu was having three

wives, namely Dugli Devi, Lesari Devi and Tehli Devi. All the three wives have now expired. Dugli Devi had expired

prior to the time, when, this witness attained maturity.

Tara is the daughter of Sharnu Ram and Lesari Devi.

Lesari was looked after by Tara and after the death of

Lesari, her last rites were performed by plaintiff-Tara. After

the death of Sharnu, his estate was devolved upon three

brothers and plaintiff-Tara. Tara had relinquished her

share in favour of her brother.

21.1 This witness has further deposed that when,

Lesari had obtained divorce from the father of this witness,

she had started residing at Sharni and Nishala. This

witness has also produced the Will of his father and proved copy of the same, as Ex.DW2/A.

21.2 In the cross-examination, this witness has admitted that marriages of Tara Devi, Leela Devi and Ambari Devi were solemnized by their father and all the aforesaid three persons are residing in their in-laws' house.

Tara Devi had obtained divorce from Kunj Lal. Thereafter,
Leela Devi was married with Kunj Lal. After obtaining the

divorce, Tara Devi started residing with her mother. This
witness has denied that Lesari had resided with Ambari,

but, voluntarily stated that she had resided with Tara.

22. To rebut this evidence, DW-1 Uttam Chand

appeared in the witness-box and filed his affidavit,
Ex.DW1/A, which is based upon the stand, as taken, by
the defendants, in the written statement.

22.1 The affidavit, which has been submitted, by this
witness, does not bear the signatures of the deponent and
despite this fact, the Oath Commissioner has attested the
same.

22.2 This witness, in the opening lines of his cross-

examination, has admitted that Tara and Ambari are real sisters. He has admitted that Tara is the daughter of

Sharnu and Ambari is the daughter of Chuni Lal. However, he has feigned his ignorance about the marriage of Lesari. Chet Ram is the brother-in-law of this witness. Chet Ram is the son of Shiv Ram. He has denied the suggestion that there was dispute between Chet Ram and Tara. Amar Chand, son of Sharnu, is known to this witness, who

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happened to be his maternal uncle. This witness could not tell the age of Lesari, when she expired. However, she had

expired on 05.10.2007 at Village Tilla Shani. Factum of death of Lesari has duly been recorded in the Panchayat

record.

22.3 Lesari had resided with this witness for about

4-5 years and this fact has duly been recorded in the Parvaar Register. Lesari has got the Will prepared on 27.12.2004. At that time, Lesari was old age and this witness took her to Kullu by travelling in a bus. Deed Writer-Subhash was neither known to this witness, nor known to Lesari. One witness was called by the maternal grandmother of this witness from Barnot and other from Kirni. All of them had started from their house together and reached Kullu at 09:10 am. The Will was dictated by the maternal grandmother of this witness in local dialect.

His maternal grandmother was illiterate and does not know Hindi and Urdu. The Will was consisting of 7 pages and thumb impressions were put at 3-4 places. Rs.400/- was given to Deed Writer-Subhash. However, no amount was paid to the witnesses. The Will was produced, before the Tehsildar at 3 pm. The reason for executing the Will was

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that he used to serve Lesari. This witness has again

admitted that Tara is the daughter of Lesari.

23. DW-2 Subhash Chand, Petition Writer-cum-Deed Writer, appeared in the witness-box and deposed that

on 27.12.2004, he scribed the Will, at the instance of Lesari Devi, which was executed in favour of Uttam Chand.

Lesari was identified by Budh Ram, Lamberdar. This witness has read over and explained the contents of the Will, after scribing it, to Lesari Devi, in the presence of witnesses, namely Budh Ram and Shiv Ram. Lesari Devi, after admitting the contents of the Will, to be true and correct, put her thumb impression over it, in the presence of the witnesses. Thereafter, the Will was produced before the Office of Sub-Registrar for registration of the same.

23.1 In the cross-examination, this witness has admitted that Lesari was not suffering from any ailment,

but, her age was about 81 years. Shiv Ram was attesting witness and Budh Ram was identifier. This witness does not know Lesari personally. However, she has brought to this witness by defendant No.1. Both the witnesses came together. It has been disclosed to this witness that Lesari was having daughters only. Lesari had also brought old

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Will, which was executed in favour of defendant No.1 and his brother.

24. DW-3 Budh Ram, Lamberdar of Phati Jana Kothi Naggar Tehsil and District Kullu, appeared in the

witness-box and deposed that Lesari Devi had executed the Will dated 27.12.2004, in favour of Uttam Chand. By virtue

of the said Will, Lesari had bequeathed her entire property in favour of defendant No.1, on the ground that defendant No.1 had rendered all kind of services towards her. This

witness had identified Lesari before scribe Subhash Chand and before the Sub-Registrar. Lesari Devi was having sound-disposing state of mind. The document was read over and explained to Lesari Devi in the presence of this witness and Shiv Ram.

24.1 This witness has again deposed that he was also one of the attesting witnesses of the Will. Lesari Devi, after admitting the contents of the Will to be true and correct, put her thumb impression over it. Thereafter, the Will was produced before the Sub-Registrar, who had again read over and explained the same to Lesari Devi in vernacular and after admitting the same to be correct, the same was registered.

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24.2 In the cross-examination, this witness has admitted that Lesari Devi was illiterate. She does not know

Hindi or Urdu. At the relevant time, age of Lesari Devi was 80 years. However, she was not suffering from any ailment.

Lesari Devi has met this witness at Kullu. This witness knew Lesari Devi and Uttam Chand. This witness has

admitted that Lesari Devi was married with Sharnu and out of the said wedlock, plaintiff-Tara was born.

24.3 This witness has feigned his ignorance that

Lesari Devi had started residing with Tara at Village Nashala, but, voluntarily stated that she was residing with defendant. He could not disclose the date of her death. According to this witness, they have reached Kullu at

about 12 pm. Will was scribed within half-an-hour. Lesari

Devi was identified by this witness. This witness could not disclose that how much amount was given to Deed Writer-

Subhash. However, this witness has not received any amount. Lesari had got scribed his Will in Hindi. This

witness could not disclose about the papers used for preparing the Will.

25. This is the entire evidence, led by both the parties, before the learned trial Court.

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26. In view of the stand, as taken, by the parties, in the pleadings, as well as, factual position, as admitted, in

the evidence, one thing is clear that plaintiff-Tara is proved to be the daughter of Lesari Devi. Even, in the document

i.e. Will, which has been relied upon, by the defendants, reference of Tara has been given as daughter of Smt. Lesari

Devi. As such, plaintiff-Tara has every right to assert her claim, regarding the estate of Lesari Devi, by challenging the Will, allegedly executed by Lesari Devi.

27. Defendant No.1, when appeared in the witness-box, has also admitted the fact that Tara and Ambari are real sisters. The defendants have asserted their claim over

the suit land, on the basis of the registered Will, which was

allegedly executed by Lesari Devi, in his favour.

28. It is no longer res integra that the Will is a
solemn document, which comes into play, after the death

of the testator/testatrix, who cannot appear, before the
Court to tell about his/her wish. Hence, it is incumbent
upon the Court to ascertain the wish of the testatrix, as
expressed in the Will. The Court is duty bound to satisfy its
conscience, before accepting a document as Will and giving
the fact to it regarding its genuineness. The onus to prove

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the Will always remains upon the propounder of the Will by
showing that the document, which is stated to be the Will,

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was validly executed by the testatrix, out of her sound
disposing mind and out of her free will. It is his/her duty

to prove that the testatrix was fully aware about the execution of the Will.

29. The legal requirement to prove the Will has elaborately been held by the Hon'ble Supreme Court, way back in the year 1959, in case 'H. Venkatachala Iyengar,

Appellant v. B.N. Thimmajamma and others, Respondents', reported in AIR 1959 Supreme Court 443.

Relevant paragraphs 18 to 22 of the said judgment are reproduced, as under:-

"(18) What is the true legal position in the matter of proof of wills ? It is well-known that the proof

of wills presents a recurring topic for decision in courts and there are a large number of judicial pronouncements on the subject. The party

propounding a will or otherwise making a claim under a will is no doubt seeking to prove a document and, in deciding how it is to be proved, we must inevitably refer to the statutory provisions which govern the proof of documents. Sections 67 and 68 of the Evidence Act are relevant for this purpose. Under s. 67, if a document is alleged to be signed by any person, the signature of the said person must be

proved to be in his handwriting, and for proving such a handwriting under ss. 45 and 47 of the Act the opinions of experts and of persons acquainted with the handwriting of the person

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concerned are made relevant. Section 68 deals with the proof of the execution of the document required by law to be attested; and it provides that such a document shall not be used as

evidence until one attesting witness at least has

been called for the purpose of proving its execution. These provisions prescribe the requirements and the nature of proof which must

be satisfied by the party who relies on a document in a court of law. Similarly, Ss. 59 and 63 of the Indian Succession Act are also relevant. Section 59 provides that every person of sound mind, not being a minor, may dispose

of his property by will and the three illustrations to this section indicate what is meant by the expression " a person of sound mind " in the context. Section 63 requires that the testator shall sign or affix his mark to the will or it shall

be signed by some other person in his presence

and by his direction and that the signature or

mark shall be so made that it shall appear that it was intended thereby to give effect to the writing as a will. This section also requires that the will shall be attested by two or more

witnesses as prescribed. Thus the question as to whether the will set up by the propounder is proved to be the last will of the testator has to be decided in the light of these provisions. Has the

testator signed the will ? Did he understand the nature and effect of the dispositions in the will ?

Did he put his signature to the will knowing what it contained ? Stated broadly it is the decision of these questions which determines the

nature of the finding on the question of the proof of wills. It would prima facie be true to say that the will has to be proved like any other document except as to the special requirements of attestation prescribed by s. 63 of the Indian Succession Act. As in the case of proof of other documents so in the case of proof of wills it would be idle to expect proof with mathematical certainty. The test to be applied would be the usual test of the satisfaction of the, prudent mind in such matters.

(19) However, there is one important feature which distinguishes wills from other documents.

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Unlike other documents the will speaks from the death of the testator, and so, when it is propounded or produced before a court, the testator who has already departed the world

cannot say whether it is his will or not ; and this

aspect naturally introduces an element of solemnity in the decision of the question as to whether the document propounded is proved to

be the last will and testament of the departed testator. Even so, in dealing with the proof of wills the court will start on the same enquiry as in the case of the proof of documents. The propounder would be called upon to show by

satisfactory evidence that the will was signed by the testator, that the testator at the relevant time was in a sound and disposing state of mind, that he understood the nature and effect of the dispositions and put his signature to the

document of his own free will. Ordinarily when

the evidence adduced in support of the will is disinterested, satisfactory and sufficient to prove the sound and disposing state of the testator's mind and his signature as required by law, courts would be justified in making a finding in

favour of the propounder. In other words, the onus on the propounder can be taken to be discharged on proof of the essential facts just indicated.

(20) There may, however, be cases in which the

execution of the will may be surrounded by

suspicious circumstances. The alleged signature of the testator may be very shaky and doubtful and evidence in support of the propounder's case

that the signature, in question is the signature of the testator may not remove the doubt created by the appearance of the signature; the condition of the testator's mind may appear to be very feeble and debilitated; and evidence adduced may not succeed in removing the legitimate doubt as to the mental capacity of the testator; the dispositions made in the will may appear to be unnatural, improbable or unfair in the light of relevant circumstances; or, the will may otherwise indicate that the said dispositions may not be the result of the testator's free will and mind. In such cases the court would

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naturally expect that all legitimate suspicions should be completely removed before the document is accepted as the last will of the testator. The presence of such suspicious

circumstances naturally tends to make the initial

onus very heavy; and, unless it is satisfactorily discharged, courts would be reluctant to treat the document as the last will of the testator. It is

true that, if a caveat is filed alleging the exercise of undue influence, fraud or coercion in respect of the execution of the will propounded, such pleas may have to be proved by the caveators; but, even without such pleas circumstances may

raise a doubt as to whether the testator was acting of his own free will in executing the will, and in such circumstances, it would be a part of the initial onus to remove any such legitimate doubts in the matter.

(21) Apart from the suspicious circumstances to

which we have just referred, in some cases the wills propounded disclose another infirmity. Propounders themselves take a prominent part in the execution of the wills which confer on

them substantial benefits. If it is shown that the propounder has taken a prominent part in the execution of the will and has received substantial benefit under it, that itself is

generally treated as a suspicious circumstance attending the execution of the will and the

propounder is required to remove the said suspicion by clear and satisfactory evidence. It is in connection with wills that present such suspicious circumstances that decisions of

English courts often mention the test of the

satisfaction of judicial conscience. It may be that the reference to judicial conscience in this connection is a heritage from similar observations made by ecclesiastical courts in England when they exercised jurisdiction with reference to wills; but any objection to the use of the word 'conscience' in this context would, in our opinion, be purely technical and academic, if not pedantic. The test merely emphasizes that, in determining the question as to whether an instrument produced before the court is the last will of the testator, the court is deciding a solemn

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question and it must be fully satisfied that it had been validly executed by the testator who is no longer alive.

(22) It is obvious that for deciding material

questions of fact which arise in applications for probate or in actions on wills, no hard and fast or inflexible rules can be laid down for the appreciation of the evidence. It may, however, be

stated generally that a propounder of the will has to prove the due and valid execution of the will and that if there are any suspicious circumstances surrounding the execution of the will the propounder must remove the said

suspicious from the mind of the court by cogent

and satisfactory evidence. It is hardly necessary to add that the result of the application of these two general and broad principles would always

depend upon the facts and circumstances of each case and on the nature and quality of the

evidence adduced by the parties. It is quite true that, as observed by Lord Du Parc in *Harmes v. Hinkson*, 50 Cal W N 895: (AIR 1946 PC 156) "where a will is charged with suspicion, the

rules enjoin a reasonable scepticism, not an obdurate persistence in disbelief. They do not demand from the judge, even in circumstances of grave suspicion, a resolute and impenetrable

incredulity. He is never required to close his mind to the truth ". It would sound platitudinous

to say so, but it is nevertheless true that in discovering truth even in such cases the judicial mind must always be open though vigilant, cautious and circumspect."

(Self-emphasis supplied)

30. Section 63 of the Indian Succession Act contains the formalities, which the propounder of the Will is required to be proved, before accepting a document as validly executed document with sound-disposing mind.

Provisions of Section 63 of the Indian Succession Act are reproduced, as under:-

"63. Execution of unprivileged wills.--

Every testator, not being a soldier employed in an expedition or engaged in actual warfare, 1 [or an airman so employed or engaged,] or a

mariner at sea, shall execute his will according to the following rules:--

(a) The testator shall sign or shall affix his mark to the will, or it shall be signed by some other person in his presence and by his

direction.

(b) The signature or mark of the testator, or the signature of the person signing for him, shall be so placed that it shall appear that it was intended thereby to give effect to the

writing as a will.

(c) The will shall be attested by two or more witnesses, each of whom has seen the testator sign or affix his mark to the will or has seen some other person sign the will, in the presence and by the direction of the

testator, or has received from the testator a personal acknowledgment of his signature or mark, or of the signature of such other person;

and each of the witnesses shall sign the will in the presence of the testator, but it shall not

be necessary that more than one witness be

present at the same time, and no particular form of attestation shall be necessary."

31. As stated above, the onus to prove the due execution of the Will and to dispel the suspicious circumstances, always remains upon the propounder of the Will and in order to achieve the said goal, defendant No.1 has examined the scribe of the document, as DW-2, who deposed that he has scribed the Will on 27.12.2004,

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at the instance of Lesari Devi and Lesari Devi was identified, before this witness, by Budh Ram, Lamberdar.

This witness has further deposed that he has read over and explained the Will, after scribing it, to Lesari Devi in

the presence of witnesses Budh Ram and Shiv Ram.

Thereafter, Lesari Devi, after admitting the contents of the

same to be true and correct, put her thumb impression over it in the presence of the said witnesses. Thereafter, the Will was taken to the Office of Sub-Registrar for registration.

31.1 In the cross-examination, DW-2 Subhash Chand has reiterated this fact that the Will was witnessed by Shiv Ram and testatrix was identified by Budh Ram.

The evidence of the witness is to be considered as a whole,

as, in the examination-in-chief, he has deposed that Budh Ram, Lamberdar had identified Lesari Devi and similar

statement has been made in the cross-examination, when, he referred Budh Ram as identifier.

31.2 Merely, in a stray sentence, in the examination-in-chief, this witness has deposed that the Will was read over and explained to Lesari Devi in the presence of witnesses Budh Ram and Shiv Ram, whereas, in the

opening lines, Budh Ram has been introduced as identifier and the similar fact has been deposed in the cross-

examination.

31.3 Admittedly, Shiv Ram has not been examined

by the propounder of the Will (defendant No.1). Only Budh Ram, Lamberdar has been examined as DW-3, who again

deposed, in his examination-in-chief, that Lesari Devi, who is personally known to this witness, had executed the Will on 27.12.2004, in favour of Uttam Chand and this witness

had identified her, before scribe Subhash Chand and before the Sub-Registrar.

31.4 In the affidavit, filed in the examination-in-chief, by DW-3 Budh Ram, Lamberdar, this witness has

made an attempt that he was also one of the attesting

witnesses, but, considering the statement of this witness,

in the light of the statement of DW-2 Subhash Chand, this

witness has only one role to play i.e. the role of identifier, as the man may tell lie, but the documents would not.

32. In the document, Ex.DW2/A, which is stated to be the Will of Lesari Devi, Budh Ram, Lamberdar, has been mentioned as 'Gwaha and Pehchan Karta'. Had this deposition with regard to the dual role of DW-3 been

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deposed by the scribe, as well as, by DW-3 himself, then situation would have been otherwise, but, as stated above,

Budh Ram, in the opening lines of his examination-in-chief, has simply deposed that he has identified the

testatrix before scribe Subhash Chand and before the Sub-Registrar.

33. Budh Ram is the Lamberdar of Phati Jana Kothi Naggar Tehsil and District Kullu, whereas, testatrix

is stated to be the resident of Village Sharnu Phati Nathan

Kothi Naggar. Admittedly, DW-3 Budh Ram is not the resident of that Village. Propounder of the Will has deposed about the fact that one alleged attesting witness was called upon by his maternal grandmother from Barnot and other

from Kirni and the address of Shiv Ram, alleged attesting

witness, has been mentioned as resident of Village Barnot, whereas, the address of DW-3 Budh Ram has been

mentioned as Phati Jana Kothi Naggar Tehsil and District Kullu. There is no evidence on the record to show that who is the witness and who is from Village Kirni.

34. In view of the evidence of DW-2 Subhash Chand and DW-3 Budh Ram, the material question, which arises for determination, before this Court, is about the fact

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whether from the evidence of these two witnesses, requirements of Section 63 of the Indian Succession Act

have been complied with or not, as, according to
Section 63 of the Indian Succession Act, the Will shall be

attested by two or more witnesses, each of whom had seen
the testator signing or affixing his thumb mark on the Will

or has some other person been signing the Will in his
presence and by the direction of the testator or has
received from the testatrix a personal acknowledgement of
her thumb mark, over the Will.

35. Although, it will not be necessary that more
than one witness be present, at the same time and no
particular form or attestation shall be necessary. The

Hon'ble Supreme Court in case 'Pentakota

Satyanarayana & Ors vs Pentakota Seetharatnam &
Ors', reported in 2006(1) Civil Court Cases 563, has

discussed the essentials, which are required to be proved,

in order to accept the document, as validly executed Will.

Paragraph 22 of the said judgment is reproduced, as

under:-

"22. It is clear from the definition that the attesting witness must state that each of the two witnesses has seen the executor sign or

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affix his mark to the instrument or has seen some other persons sign the instrument in the presence and by the direction of the executant. The witness should further state

that each of the attesting witnesses signed the

instrument in the presence of the executant. These are the ingredients of attestation and they have to be proved by the witnesses. The

word 'execution' in Section 68 includes attestation as required by law."

36. Adjudging the evidence of DW-2 and DW-3,

none of the witnesses have stated that they had put their thumb impressions or signatures over the document, in

the presence of the testatrix. DW-2 has stated that Lesari Devi had put her thumb impression over the Will in the presence of the witnesses, but, not stated that the attesting witnesses had also put their signatures/thumb impressions, over the Will in the presence of Lesari Devi or

both of them had received the acknowledgement from

Lesari Devi, regarding the execution of the Will.

36.1 Similarly, DW-3 has simply stated that the Will

was read over and explained, by DW-2 to Lesari Devi, in his presence and in the presence of witness Shiv Ram and thereafter, Lesari Devi, after admitting the contents of the Will to be correct, put her thumb impression. He has not stated that Lesari Devi has put her thumb impression in

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the presence of the witnesses and thereafter, they had signed or put thumb mark over the document Ex.DW2/A.

37. If the facts and circumstances of the present case are seen, in the light of the decision of the Punjab and

Haryana High Court, in case 'Gurnam Singh Versus Ass Kaur & Ors', reported in AIR 1977 P&H 103, the

propounder of the Will has miserably failed to prove the due execution of the Will, within the four corners of Section 63 of the Indian Succession Act. Relevant paragraph 5 of the said judgment is reproduced, as under:-

"5. Point (i). This point is covered by issue No.3 as framed in the case. Both the Courts

below after a detailed scrutiny of the evidence on the record have come to a concurrent finding that the due execution of the will does not stand proved. The lower Appellate Court

has given cogent and impressive reasons for coming to this conclusion. The will in question

is Exhibit D-6. It is obvious that the document bears the signatures, purporting to be of Ganda Singh testator, at one place in the margin and not where such signatures are

usually expected to be found, that is, at the conclusion of the document. It is not shown to have been attested by any witness though there is a mention that the document was scribed by Ram Lall Sharma Petition-Writer of Ferozepur. It appears that this will was deposited with the Registrar under the provisions of Section 42 of the Indian Registration Act (hereinafter called the Act) because the cover (Exhibit D-7) in which the will was so deposited, contains some sort of an endorsement by use of the word "admitted". Two persons (Mastan Singh and

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Kala Singh) are indicated as being the identifiers of the deposit of the will. From these circumstances it is sought to be argued that the due execution of the will may be

presumed. There is, however, no warrant for

this proposition. The execution of a will is to be proved within the four corners of Section 63 of the Indian Succession Act which clearly

lays down that before a will can be accepted as validly executed the same has to be attested by two or more witnesses, each of whom has seen the testator signing the will or to whom the testator has given a personal

acknowledgment of his signatures on the will. There is a further provision that each of these two witnesses should have signed the will in the presence of the testator. It cannot be disputed that the law requires strict

compliance of this provision of law in the

interest of sanctity attached to the document, the author of which is no more in the world. This matter has been coming up for consideration before Courts from times immemorial and the necessity for strict

compliance of the provisions of law as aforesaid, has always been emphasised. The learned counsel for the appellant has placed reliance on an English authority cited in the

Goods of Mann, Deceased, 1942 PD 146, wherein the execution of a will placed in a

sealed envelope was accepted. The facts in this case are quite distinguishable. The testatrix had written out her will on a sheet of

paper in the presence of two attesting witnesses and after completing the document had placed it in an envelope on which she made an endorsement that this was her last will and testament. Thereafter on the request of the testatrix, the two witnesses in the presence of the testatrix and on" another made their attestation on the abovementioned endorsement. All the documents were subsequently placed in another sealed envelope and delivered to the executrix who kept the same. It was in these premises that it was held that the circumstances were so plain and well-ascertained as to preclude all

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possibility of fraud, emphasis having been laid on the fact that the will as well as the endorsement on the envelope were written in the presence of the attesting witnesses. This

is not so in the case in hand. The only

attesting witness produced at the trial, that is, Mastan Singh was found to be not reliable as he made a patently wrong statement that the

will was presented before the Registrar within minutes of its execution, although according to documentary evidence the will is shown to have been presented before the Registrar after more than a month of its execution. The

statement of Mastan Singh was also found to be contradictory in various other material particulars, The learned counsel for the appellant has made a faint attempt to gain support from certain observations in

Umakanta Das Bairiganjan Bhuyan

Mahapatra v. Bis-wambhar Dass Mahapatra, AIR 1929 Pat 401, wherein it was held by one of the Judges constituting the Divn. Bench that the attestation made by the identifier at the time of presentation of the will

under Section 43 of the Registration Act, can be considered as attestation of the will itself. This view was, however, not shared by the other learned Judge who was of the opinion

that such a witness was purely a witness to the deposit of the will and not of the will itself

as he had no animus attestandi. The authority is, therefore, hardly of any utility to the learned counsel for advancing his argument

on this point."

38. When, the solemn act of registration was done by the concerned Sub-Registrar, Budh Ram DW-3 has signed as identifier.

39. The Hon'ble Supreme Court in case 'Girja Datt Singh v. Gangotri Datt Singh', reported in AIR 1955 SCC 346, has elaborately discussed the term 'attestation'.

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Relevant paragraph 14 of the said judgment, is reproduced, as under:-

"14. It still remains to consider whether the attestation of the signature of the deceased on the will, Ex. A-36 was in accordance with the requirements of Section 63, Indian Succession

Act. Section 63 prescribes that:

"(c) The will shall be attested by two or more witnesses, each of whom has seen the testator sign or affix his mark to the will or has seen some other person sign the will, in the presence

and by the direction of the testator, or has received from the testator a personal acknowledgment of his signature or mark, or of the signature of such other person; and each of the witnesses shall sign the will in the presence

of the testator"

In order to prove the due attestation of the will Ex. A-36 Gangotri would have to prove that Uma Dutt Singh and Badri Singh saw the deceased sign the will and they themselves signed the same in the presence of the

deceased. The evidence of Uma Dutt Singh and Badri Singh is not such as to carry conviction in the mind of the Court that they saw the

deceased sign the will and each of them appended his signature to the will in the presence of the deceased. They have been

demonstrated to be witnesses who had no regard for truth and were ready and willing to oblige Gur Charan Lal in transferring the venue

of the execution and attestation of the documents Ex. A-23 and Ex. A-36 from Gonda to Tarabganj for reasons best known to themselves.

If no reliance could thus be placed upon their oral testimony, where would be the assurance that they actually saw the deceased execute the will in their presence and each of them signed the will in the presence of the deceased. It may as well be that the signature of the deceased on the will was appended at one time, the deceased being there all alone by himself and the attestations were made by Uma

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Dutt Singh and Badri Singh at another time without having seen the deceased sign the will or when the deceased was not present when they appended their signatures thereto in token

of attestation. We have no satisfactory evidence

before us to enable us to come to the conclusion that the will was duly attested by Uma Dutt Singh and Badri Singh and we are therefore

unable to hold that the will Ex. A-36 is proved to have been duly executed and attested."
(Self-emphasis supplied)

40. The term 'attestation' has again been discussed,

by the Hon'ble Supreme Court, in case 'N. Kamalam (dead) and Another v. Ayyaswamy and Another', reported in AIR 2001 Supreme Court 2802. Relevant paragraphs 26 and 27 of the said judgment are reproduced, as under:-

"26. The effect of subscribing a signature on the part of the scribe cannot in our view be identified to be of same status as that of the attesting

witnesses. The signature of the attesting witness as noticed above on a document, required

attestation (admittedly in the case of a will the same is required), is a requirement of the statute, thus cannot be equated with that of the

scribe. The full Bench judgment of the Madras High Court in H. Venkata Sastri and Sons and others v. Rahilna Bi and others (AIR 1962 Madras 111), wherein Ramachandra Iyer, J.

speaking for the full bench in his inimitable style and upon reliance on Lord Cambells observation in *Burdett v. Spilsbury* has the following to state pertaining to the meaning to be attributed to the word 'attestation':

The definition of the term attested which is almost identical with that contained in S.63 (c) of the Indian Succession Act, has been the result of an amendment introduced by Act 27 of 1926. Prior to that amendment it was held by this court 36 2024:HHC:4661 that the word attested was used only in the narrow sense of the

attesting witness being present at the time of execution. In *Shamu Pattar v. Abdul Kadir* ILR 35 Mad 607 (PC), the Privy .

Council accepted the view of this court that attestation of a mortgage deed must be made by the witnesses signing his name after seeing the actual execution of the deed and that a mere acknowledgement of his signature by the executant to the attesting witness would not be sufficient. The amending Act 27 of 1926 modified the definition of the term in the Transfer of property Act so as to make a person who merely obtains an acknowledgment of execution and affixed his signature to the document as a witness, an attester. It will be noticed that although S.3 purports to define the word attested it has not really done so. The effect of the definition is only to give an extended meaning of the term for the purpose of the Act; the word attest is used as a part of the definition itself. It is, therefore, necessary first to ascertain the meaning of the word attest independent of the statute and adopt it in the light of the extended or qualified meaning given therein. The word attest means, according to the Shorter Oxford Dictionary to bear witness to, to affirm the truth or genuineness of, testify, certify. In *Burdet v. Spilsbury*, (1842-43) 10 Cl and F 340, Lord Cambell observed at page 417, "What is the meaning of an attesting witness to a deed? Why, it is a witness who has seen the deed executed, and who signs it as a witness."

The Lord Chancellor stated, "the party who sees the will executed is in fact a witness to it; if he subscribes as a witness, he is then an attesting witness."

The ordinary meaning of the word would show that an attesting witness should be present and see the document signed by the executant, as he could then alone vouch for the execution of the document. In other words, the attesting witness must see the execution and sign. Further, attestation being an act of a witness, i.e., to testify to the genuineness of the signature of the executant, it is obvious that he 37 2024:HHC:4661 should have the necessary intention to vouch it. The ordinary meaning of the word is thus in conformity with the definition thereof under the Transfer of Property Act before it was .

amended by Act 27 of 1926. Before that amendment, admission of execution by the executant to a witness who thereupon puts his signature cannot make him an attester properly so called, as he not being present at the execution, cannot bear witness to it; a mere mental satisfaction that the deed was executed cannot mean that he bore witness to execution.

(4) After the amendment of S.3 by Act 27 of 1926, a person can be said to have validly attested an instrument, if he has actually seen the executant sign, and in a case where he had not personally witnessed execution, if he has received from the executant a personal, acknowledgment of his signature, mark etc. Thus of the two significant requirements of the term attest, namely (1) that the attester should witness the execution, which implies his presence, then, and (2) that he should certify or vouch for the execution by subscribing his name as a witness; which implies a consciousness and an intention to attest, the Amending Act modified only the first; the result is that a person can be an attesting witness, even if he had not witnessed the actual execution, by merely receiving personal acknowledgment from the executant of having executed the document and putting his signature. But the amendment did not affect in any way the necessity for the latter

requirement, namely, certifying execution which implies that the attesting witness had the animus to attest."

27. It was next contended that in the event of there being an intent to attest, that itself should be sufficient compliance of the requirement of law. While the introduction of the concept of animus to attest cannot be doubted in any way whatsoever and also do feel it relevant in the matter of proof of a document requiring attestation by relevant statutes but the same is dependant on the fact situation. The learned Judge as noticed above has himself recorded 38 2024:HHC:4661 that two significant requirements of the term attest viz., that the attesor should witness the execution thereby thus implying his presence on the occasion and secondly that he should certify .

for execution by subscribing his name as a witness which implies consciousness and intention to attest. Unfortunately, however, the factual score presently available does not but depict otherwise. The scribes presence cannot be doubted but the issue is not what it is being said to be in support of the appeal that the scribe having subscribed his signature, question of further attestation would not arise this issue unfortunately we are not in a position to lend concurrence with. The will as produced, records the following at page 4 thereof: (page 106 of the P.Book) Witnesses L.T.I. of Masanae Gowder

1. (sd/-(T.subbiya) S/oVeerai Gowder 25/298 Thomas Street Coimbatore.
2. (sd/-) B. Govindaraju s/o S. Balagurumurthy Chettiar 25/250 Rangai Gowder Street, Coimbatore.

..S/d Arunachalam"

The animus to attest, thus, is not available, so far as the scribe is concerned: he is not a witness to the will but a mere writer of the will. The statutory requirement as noticed above cannot thus be transposed in favour of the writer rather goes against the propounder since both the witnesses are named therein with detailed address and no attempt has been made to bring them or to produce them before the court so as to satisfy the judicial conscience. Presence of scribe and his signature appearing on the document does not by itself be taken to the proof of due attestation unless the situation is so expressed in the document itself this is again however not the situation existing presently in the matter under consideration. Some grievance was made before this court that sufficient opportunity was not being made available, we are however, unable to record our concurrence therewith. No attempt whatsoever has been made to bring the attesting witnesses who are obviously available."

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41. If, the statements of DW-2 and DW-3 are seen, in the light of the decisions of the Hon'ble Supreme Court, .

as referred above, this Court is of the view that the evidence of these two witnesses is too short to fall within the term 'attested'.

42. The essential condition of valid attestation has elaborately been discussed, by the Hon'ble Supreme Court in case 'M.L. Abdul Jabbar Sahib v. H. Venkata Sastri and Sons and others', reported in AIR 1969 Supreme Court 1147. In this case, the Hon'ble Supreme Court has categorically held that the person, who puts signatures on the document for some other purpose i.e. to certify that he is a scribe or an identifier or a registering officer, does not fall within the definition of "an attesting witness". Relevant paragraph 8 of the said judgment, is reproduced, as under:-

"8. Section 3 of the Transfer of Property Act gives the definition of the word "attested" and is in these words :-

"Attested", in relation to an instrument, means and shall be deemed to have meant attested by two or more witnesses each of whom has seen the executant sign or affix his mark to the instrument, or has seen some other person sign the instrument in the presence and by the (1) I.L.R. 52 Mad. 123. direction of the executant, or has received from the executant a personal acknowledgment of his- signature or mark, or of the signature of such other 40 2024:HHC:4661 person, and each of whom has signed the instrument in the presence of the executant; but it shall not be necessary that more than one of such witnesses shall have been present at the same time and no .

particular form of attestation shall be necessary."

It is to be noticed that the word "attested", the thing to be defined, occurs as part of the definition itself. To attest is to bear witness. to a fact. Briefly put, the essential conditions of a valid attestation under s. 3 are :

(1) two or more witnesses. have seen the executant sign the instrument or have received from him a personal acknowledgment of his signature; (2) with a view to attest or to bear witness to this fact each of them has. signed the instrument in the presence of the executant. It is essential that the witness should have- put his signature *animo attestandi*, that is, for the purpose of attesting that he has seen the executant sign or has received from him a personal acknowledgment of his signature. If a person puts his signature on the document for some other purpose, e.g., to certify that he is a scribe or an identifier or a registering officer, he is not an attesting witness."

(Self-emphasis supplied)

43. DW-3 has signed on the document Ex.DW2/A as Lamberdar/identifier of testatrix, which has been deposed so, by DW-2, as well as, his name, appeared in the backside of the Will, at the place of registration, has been mentioned as identifier.

44. According to the evidence, so adduced, by the parties, the propounder of the Will had taken active part in the alleged execution of the Will. He has deposed that on the relevant date i.e. the date, when, alleged Will was executed, they all started from the house of Lesari and 41 2024:HHC:4661 reached at Kullu at about 09:10 am. Interestingly, he has deposed that the Will was got written by Lesari Devi in .

local language (desi bhasha). He has also admitted that his maternal grandmother was illiterate and does not know Hindi or Urdu. The Will is stated to be consisting of 7 pages, whereas, the Will Ex.DW2/A is consisting of only 4 pages and DW-2 scribe Subhash Chand remained silent about the fact that Lesari Devi had got scribed the Will in local language. He has simply stated that the Will was executed, at the instance of Lesari Devi. Age of Lesari Devi, in the document, has been mentioned as 81 years.

45. Since, the propounder of the Will, who is defendant No.1, in the present lis, had taken active part in execution of the document, Ex.DW2/A, his presence itself is a suspicious circumstance, which has not been dispel by him. Defendant No.1 is not only a propounder, but, beneficiary of the document and as such, liable to remove the suspicious circumstances. The term 'suspicious circumstances' nowhere defines, however, in view of the decision of the Hon'ble Supreme Court in case 'Smt. Indu Bala Bose and Others Versus Manindra Chandra Bose and Another', reported in (1982) 1 Supreme Court Cases 42 2024:HHC:4661 20, the Hon'ble Supreme Court has given circumstance, which falls within the definition of 'suspicious .

circumstances'. Relevant paragraphs 13 and 14 of the said judgment, are reproduced, as under:-

"13. Learned counsel for the appellant has enumerated the following 11 'suspicious' circumstances:

(i) Attempt on the part of the propounder to conceal the real nature of testator's illness.

(ii) The propounder failed to tell the date when the testator went to his lawyer (P.W. 3's) house or when the draft was given by the lawyer to the testator.

(iii)The draft has not been produced and no explanation has come forth as to what happened to the draft.

(iv) No date has been mentioned when the testator sent for his lawyer through Banqshidhar for corrections in the draft.

(v) The diary of P.W. 3 has not been produced.

(vi) The senior lawyer (Sudhangshu Babu) has not been examined. The lawyer examined, namely P.W.3, is a partisan witness.

(vii) Banqshidhar has not been examined as a witness although he was attending court during the trial of the suit.

(viii) The statement of the propounder, Manindra, that he knew about the will only three or four days after its execution cannot be accepted as true when one of the attesting witnesses, namely P.W. 5, had been told of it a month earlier.

(ix) Nobody knows what alterations were made in the draft.

(x) The scribe and one of the attesting witnesses are employees, another witness (P.W.4) is a friend and the other attesting witness (P.W.5) is a relation.

(xi) The evidence of the propounder, Manindra, is partly false; he disavows all knowledge of the will.

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14. A careful perusal of the above circumstances shows that they are by no means suspicious circumstances and stand self-explained. Circumstances Nos. (ii) and (iv) are really test of .

memory. It may be remembered that the witnesses were deposing thirteen years after the execution of the will. It will be difficult for any witness after such a long lapse of time to give the dates when the testator went to the house of his lawyer or when the draft was given by the lawyer to the testator or when the testator sent for the lawyer through Banqshidhar for correction of the draft. With regard to circumstance No. (iii) there is no evidence to show that there was any invariable practice that the draft of a will had to be preserved. No question was put in cross-examination to the scribe (P.W. 1) who perhaps might have been able to say what he had done with it. Similar is the position with regard to the diary of P.W. 3. P.W. 3 who deposed that his diary would show that he had drafted the will was not asked in cross-examination as to whether he at all preserved in 1965 the diary of 1952 or whether he could produce it. With regard to grievances Nos. (vi) and (vii) we do not see any necessity of calling the testator's employee Banqshidhar, as witnesses in the case. So far as Sudhangshu Babu was concerned, Manindra was not asked as to why he had not been called as a witness;

possibly he had died as P.W. 3 spoke of him as "my late senior". With regard to circumstance No.

(ix), it may be said that there was no necessity of knowing what alterations had been made in the draft. With regard to the circumstance that the scribe and the attesting witnesses were either employees, or friend or relation of the propounders' group, the answer is simple. No body would normally invite a stranger or a foe to be a scribe or a witness of a document executed by or in his favour; normally a known and reliable person, a friend or a relation is called for the purpose. The same argument applies to P.W.3 who is said to be a partisan witness for the reason that he was the testator's advocate. But there is nothing to show that he was not telling the truth in his deposition. With regard to 44 2024:HHC:4661 the circumstances Nos. (viii) and (x) that Narendra was not

telling the whole truth, when he said that he had come to know of the will three or four days after its execution the .

complaint may be correct, although it was not impossible that he had not been taken into confidence in the matter of the will in his favour, although P.W. 5 had been. Another possibility is that Manindra deposed so in order to avoid cross-examination. In any case this does not appear to be a suspicious circumstance surrounding the execution of the will."

46. A perusal of the document, Ex.DW2/A, shows that the scribe has used such terminology, which could not be understood by a layman and there is no evidence on record to show that the said terminology, as used in the said document, has been explained to the testatrix. Hence, the document, Ex.DW2/A, is too short to demonstrate the real intention of Smt. Lesari Devi, about her property.

47. Use of typical legal terminology in the document and non-explanation of the witnesses qua the fact that the meaning of those words has been explained to the testatrix, this Court is of the view that the due execution of the Will could not be proved by the propounder of the Will.

48. In view of the discussions, made hereinabove, due execution of the Will has not been proved, nor defendant No.1 could dispel the suspicious circumstances, 45 2024:HHC:4661 as, he is the person, who had taken the active part in alleged execution of the Will.

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49. Therefore, both the Courts below had fallen into error by holding the fact that the Will, Ex.DW2/A, is proved to be a consciously executed document by the testatrix in her sound-disposing state of mind.

50. The propounder of the Will i.e. defendant No.1, has taken active part in execution of the alleged document, Ex.DW2/A, as, he was the person, who allegedly took the testatrix to Court Complex and he was thereafter introduced to DW-2 scribe Subhash Chand, who stated that Lesari Devi was previously known to him. On the other hand, the propounder of the Will has taken the plea that Lesari Devi had called two witnesses, one from Village Barnot and other from Kirni, whereas, none of the signatory to the document, Ex.DW2/A, is from Village Kirni.

51. The learned trial Court, as well as, the learned First Appellate Court have not considered all these aspects and as such, the findings are proved to be based upon misreading of the evidence, so adduced, by the parties, and 46 2024:HHC:4661 thus, these findings fall within the definition of 'perverse findings'.

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52. Cumulative effect of the above discussion is that defendant No.1 has miserably failed to prove the document, Ex.DW2/A, as a document, which was the consciously executed document, by the

testatrix with sound-disposing state of mind. Accordingly, the substantial question of law is decided in favour of the appellant.

53. Although the plaintiff has challenged the mutation, but, mutation does not confer any title and as such, it can be held that the document, on the basis of which, mutation was sanctioned, does not prove to be a consciously executed document, by Smt. Lesari Devi with sound-disposing state of mind.

54. Accordingly, the estate of Smt. Lesari Devi will be devolved on the basis of the natural succession and not on the basis of the document, Ex.DW2/A.

55. Consequently, the judgment and decree, passed by the learned trial Court, dismissing the suit of the plaintiff, which has been affirmed by the learned First Appellate Court, is set aside and the suit of the plaintiff is 47 2024:HHC:4661 decreed, by declaring that the plaintiff, along with defendant No.2, is entitled to inherit the estate of Smt. .

Lesari Devi, as per provisions of Section 15(1) of the Hindu Succession Act.

56. Keeping in view the facts and circumstances of the case, parties are left to bear their own costs.

57. Decree sheet be prepared, accordingly.

58. Pending application(s), if any, shall also stand disposed of.

59. Record be sent down.

(Virender Singh) Judge July 08, 2024 (Gaurav Thakur)